

DIY Manual: Filing a Criminal Fraud Complaint (Zawiadomienie) in Poland

From Abroad, Without a Lawyer — A Step-by-Step Guide for Foreign-Resident Victims

Prepared for: Magnus Brantheim

Case: Art. 286 KK fraud complaint against Mateusz Szklarski / GPUcomputer

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1. Where to File: Territorial Competence

The first practical question is deceptively simple: which door do you walk through? In the Polish prosecution system, the answer is determined not by where you live, nor by where the suspect currently resides, but by the *miejsce popełnienia przestępstwa* (place of commission of the offence). This chapter explains how that place is identified for fraud under Article 286 KK, identifies the precise prosecutorial unit, and evaluates whether filing from Warsaw is a viable shortcut.

1.1 The Basic Rule: *Miejsce Popęłnienia Przestępstwa*

1.1.1 The statutory framework

Territorial competence of the Polish prosecution service is governed by § 123 of the Internal Rules of Organisation and Procedure (*Regulamin wewnętrznego urzędowania powszechnych jednostek organizacyjnych prokuratury*, Dz.U. 2025 poz. 753), which provides that preparatory proceedings are conducted by the unit within whose area the offence was committed, and that Articles 31 § 2 and 32 § 1 KPK apply *odpowiednio* (by analogy).^[1] The substantive definition of “place of commission” is found in Article 6 § 2 KK: an offence is deemed committed where the perpetrator acted or failed to act, or where the prohibited consequence occurred or was intended to occur.^[5]

Do not confuse this with Article 17 KPK, which lists negative prerequisites for initiating proceedings (e.g., negligible social harmfulness, limitation),^[2] or Article 20 KPK, which addresses breaches of duties by defence counsel — neither provision governs territorial jurisdiction.^[3]

1.1.2 Fraud as a *przestępstwo materialne*: two places of commission

Fraud under Article 286 § 1 KK is a *przestępstwo materialne* (material crime) — an offence whose legal definition requires a specific harmful result, namely *niekorzystne rozporządzenie mieniem* (detrimental disposition of property). For material crimes, Article 6 § 2 KK creates two concurrent places of commission: the site of the perpetrator’s conduct and the site where the harmful result materialised.^[4] In a cross-city fraud by bank transfer, the suspect’s place of business is one venue; the victim’s transfer location is another.

1.1.3 *Sąd Apelacyjny* Lublin, IV Ka 19/20 (2020)

The Lublin Court of Appeal held explicitly that “the offence under Article 286 § 1 KK is a material crime whose consequence is the detrimental disposition of property [...] the bank transfer made by the victim [...] was effected within [the victim’s] district, and it was in that place that the detrimental disposition of property occurred.”^[4] This ruling makes the bank transfer location a place of commission for jurisdictional purposes.

1.2 Application to This Case

1.2.1 Kraków: primary jurisdiction

The strongest anchor is Kraków, seat of Mateusz Szklarski’s sole proprietorship registered at ul. Mogilska 16/7 per CEIDG. It is from this registration that the commercial offer was extended and contractual correspondence conducted. Under the “perpetrator’s conduct” limb of Article 6 § 2 KK, Kraków is unambiguously a place of commission.

1.2.2 Warsaw: concurrent jurisdiction

Warsaw is equally a place of commission under the “consequence” limb. You reside in Warsaw and executed the 155,000 PLN payment from a Warsaw-based account. Under SA Lublin IV Ka 19/20, the transfer location is where the financial loss occurred.^[4] The principle of *wielomiejscowość* (multiplicity of venues) in Article 31 § 3 KPK provides that when an offence is committed in several districts, the court — and, by analogy through § 123 *Regulaminu*, the prosecutor — in whose district proceedings were first initiated is competent.^[1]

1.2.3 The Netherlands residence: affects enforcement, not jurisdiction

Szklarski’s physical residence in the Netherlands does not remove Polish jurisdiction. Article 5 KK applies the principle of *zasada terytorialności* (territoriality): the Polish Criminal Code covers any offence committed on Polish territory.^[11] So long as one element — the perpetrator’s conduct (Kraków) or the harmful consequence (Warsaw) — occurred in Poland, Polish organs are competent regardless of the suspect’s domicile.^[12] Foreign residence may complicate later enforcement (service of documents, asset seizure), but it is irrelevant to the question of which *prokuratura* receives the complaint.

1.3 The Competent Prosecutorial Unit

1.3.1 From address to district to *prokuratura*

The address ul. Mogilska 16/7 falls within Dzielnica II Grzegórzki. The official street index for Grzegórzki covers “Mogilska (excluding odd numbers 101–121k and even numbers from 104 upwards)” — placing even-numbered buildings up to 102, including no. 16, squarely within this district.^[8] Under the territorial division established by the Regulation of the Minister of Justice of 20 December 2005 (Dz.U. 2005 nr 261 poz. 2190), Dzielnica II Grzegórzki falls under **Prokuratura Rejonowa Kraków-Śródmieście Wschód**.^{[9][370]}

⚠ **Do not confuse a *prokuratura*’s seat with its jurisdiction.** Prokuratura Rejonowa Kraków-Krowodrza moved to ul. Mogilska 17 in March 2025, directly opposite the suspect’s registered address.^[238]

However, that unit’s competence covers districts V, VI, and VII — not Grzegórzki. This is a classic *confusio sedis et jurisdictionis* that has tripped even local practitioners.

1.3.2 Full address and contact details

Prokuratura Rejonowa Kraków-Śródmieście Wschód ul. Mosiężnicza 2 30-965 Kraków e-mail: biuro.podawcze.prkra-sws@prokuratura.gov.pl tel.: 12 619-60-00 (centrala), 12 619-60-52 (sekretariat) Reception of parties: weekdays 09:00–15:00, Mondays until 17:00

1.3.3 Table: territorial jurisdiction of Kraków *prokuratury rejonowe*

Prokuratura Rejonowa	Auxiliary districts (dzielnice pomocnicze)	Traditional area
Kraków-Śródmieście Zachód	I (Stare Miasto)	Śródmieście
Kraków-Śródmieście Wschód	II (Grzegórzki), III (Prądnik Czerwony)	Śródmieście
Kraków-Krowodrza	V (Krowodrza), VI (Bronowice), VII (Zwierzyniec)	Krowodrza
Kraków-Podgórze	XI, XII, XIII	Podgórze
Kraków-Nowa Huta	XIV, XV, XVI, XVII, XVIII	Nowa Huta
Kraków-Prądnik Biały	IV (Prądnik Biały), VIII (Dębniki)	Prądnik Biały

Sources: *Rozporządzenie MS z 20 grudnia 2005 r. (Dz.U. 2005 nr 261 poz. 2190)*; *gov.pl prosecution portal*.^{[239][370][10]}

1.4 Can You File in Warsaw?

1.4.1 Any *prokuratura* must accept and forward

Yes. § 115 ust. 1 *Regulaminu* obliges any prosecutor who receives notification of an offence outside his territorial competence to secure traces and evidence, then forward the case to the competent unit.^[7] The e-Justice portal confirms that a complaint may be lodged “in any prosecution unit” — filing in a non-competent unit is not a procedural defect.^[6]

1.4.2 Transfer is automatic and non-appealable

§ 122 ust. 3 provides that transfer to another unit “does not require the form of a *postanowienie* or *zarządzenie* and is not subject to appeal.”^[7] You have no recourse if the transfer is delayed or misrouted.

1.4.3 Practical recommendation

For a 155,000 PLN case, file directly at Kraków-Śródmieście Wschód via **registered mail with acknowledgment of receipt** (*list polecony za potwierdzeniem odbioru*). This eliminates the 1–2 week transfer delay, preserves a dated postal receipt establishing the filing date, and ensures the file enters the hands of the prosecutor who will conduct the *postępowanie sprawdzające* (screening proceeding).

1.5 DIY Risk Flag

⚠ **RISK: Filing in the wrong unit does not invalidate the complaint, but transfer delays create gaps for evidence destruction.** § 115 ust. 1 requires the receiving prosecutor to secure evidence before forwarding,^[7] but this protective step is rarely activated for white-collar fraud complaints in practice. During 1–2 weeks of internal transit, the suspect may continue transferring assets or deleting records. The complaint cannot be dismissed for filing in a non-competent unit, but the strategic cost of delay is real. File directly at the competent Kraków unit unless postal constraints make it genuinely impossible.

2. How to File from Abroad: Remote Filing Methods

If you are in Sweden when you decide to file, you have five legally recognised paths. Only two of them offer a reasonable probability of success for a self-represented foreign complainant. This chapter examines each method in order of reliability, with concrete cost estimates, authentication requirements, and the specific legal authorities that determine whether your complaint will survive intake or be rejected on formal grounds.

2.1 Method 1: Registered Post (List Polecony) — RECOMMENDED

Polish criminal procedure accepts written *pisma procesowe* (process documents) filed by post. Article 119 § 1 KPK sets four formal requirements for any such document: designation of the receiving organ and the case; the sender's name and address; the substance of the request or statement; and the date together with a handwritten signature.^[71] A *zawiadomienie o popełnieniu przestępstwa* (criminal complaint) sent by registered post to the competent *prokuratura* or police station satisfies these requirements if the original paper document bears your ink signature.^[158]

CRITICAL — The handwritten signature requirement. The signature must be *własnoręczny* (handwritten in original ink). Computer-generated signatures, rubber stamps, facsimiles, and electronic signatures do not satisfy art. 119 § 1 pkt 4 KPK.^[210] The Supreme Court held definitively in *Uchwała SN I KZP 29/06* that a scan of a hand-signed document transmitted by fax or email does not fulfil the statutory signature requirement — what matters is the original signature on the physical document submitted to the court or prosecution.^[211] This means you must print the complaint, sign it by hand with a pen, and send the original paper. A scanned PDF emailed to the prosecutor, even if it displays your signature, creates no procedural effect.

Send the original signed document by **international registered mail** (*list polecony ze zwrotnym potwierdzeniem odbioru*) to the competent *Prokuratura Rejonowa Kraków-Śródmieście Wschód* at ul. Mosiężnicza 2, 30-965 Kraków. The address was verified in Chapter 1. Retain the postal receipt; it is your only proof of dispatch date if the prosecution later disputes when the complaint was filed. Delivery from Sweden typically takes 5 to 10 business days. Upon receipt, request confirmation under art. 304b KPK — the prosecution is required to issue a written acknowledgment containing the date and place of receipt, the receiving organ's contact details, and the case file number (*sygnatura*).^[71]

Cost estimate: 50–100 PLN (~12–25 EUR) for international registered mail from Sweden, depending on weight and whether you add a return receipt.

2.2 Method 2: Power of Attorney (Pełnomocnictwo)

If you prefer that someone in Poland manage the filing and subsequent correspondence, you may grant a *pełnomocnictwo szczególne* (special power of attorney) to a Polish-resident friend or to professional counsel. Polish law does not require notarisation for a PoA whose sole purpose is to file a criminal complaint — ordinary written form is legally sufficient.^[228] The document must identify the attorney-in-fact (*pełnomocnik*) by name, specify the scope of authority (e.g., “to file a criminal complaint under art. 286 KK concerning fraud in computer-equipment sales”), and bear your handwritten signature.^[4]

However, because the PoA will be executed in Sweden and used in Poland, practical reliability demands an additional layer of authentication. Polish authorities are not obliged to accept an informal foreign document at face value. The safer approach is:

1. **Have your signature notarised** by a Swedish *Notarius Publicus*.
2. **Obtain an apostille** from the same *Notarius Publicus* (cost: ~400 SEK / ~150–180 PLN).^{[351][372]}
3. **Have the PoA translated** into Polish by a sworn translator (*tłumacz przysięgły*); budget ~50–60 PLN per page.^{[62][257]}

Your attorney-in-fact then files the complaint in person or by post, attaching the original apostilled PoA and its sworn translation. The total cost for this route ranges from approximately 240 PLN (friend files, minimal translation) to 540 PLN (if you also engage a Polish lawyer to draft the complaint, which adds 300–600 PLN in legal fees).^{[143][267]} A key advantage: your representative can respond to supplementary requests, track the case file, and appear for any witness interviews without further involvement from you.

⚠ RISK: EU Regulation 2016/1191 does **not** abolish the apostille requirement for powers of attorney. The Regulation’s closed catalogue (art. 2) covers only 14 categories of documents — birth, death, marriage, residence, citizenship, criminal-record extracts, and electoral rights — and power of attorney is not among them.^{[353][346]} The Hague Apostille Convention continues to govern PoAs between Sweden and Poland.^[374] The Polish Embassy in Stockholm explicitly confirms that a Swedish PoA for use in Poland must be notarised and apostilled.^[379] Do not rely on the misconception that intra-EU documents are automatically exempt.

2.3 Method 3: ePUAP / e-Prokuratura

Two electronic platforms are sometimes confused: *ePUAP* (the Electronic Platform of Public Administration Services) and *e-Prokuratura* (the prosecution’s internal case-management system). They are not interchangeable.

e-Prokuratura is an internal IT system used by prosecutors to manage investigations and share files between units. It offers **no public-facing portal** for citizens to file complaints.^[164] You cannot access it.

ePUAP is accessible to the public, but it has **no dedicated service for filing criminal complaints**. The only available channel is the generic “*pismo ogólne*” (general letter) function, which sends an unclassified electronic message to a selected public body.^[168] Whether a prosecutor would process such a message as a formal *zawiadomienie o przestępstwie* is uncertain. To use ePUAP, you need *Profil Zaufany* (Trusted Profile), which requires a PESEL number — likely available to you as a Warsaw-registered EU citizen — plus identity verification (via online banking, a verification centre, or the *mObywatel* app).^{[194][195]} Even if you clear these hurdles, the procedural status of a complaint filed as a “general letter” remains doubtful. For a borderline case that already faces a high risk of screening-phase dismissal, adding formal uncertainty at the intake stage is inadvisable.

2.4 Method 4: Email — NOT RECOMMENDED

Ordinary email carries the highest risk of procedural failure. The Kraków Court of Appeal held in *II AKz 752/24* (27 December 2024) that electronic correspondence, even if it meets the technical standards of the e-identification statute, “does not produce effects on the plane regulated by criminal procedure provisions and therefore does not create procedural effect.”^[191] The same position is reflected in the general guidance of the Kraków Appellate Court: for persons not represented by professional counsel, electronic submission of process documents does not satisfy art. 119 KPK.^[190]

The Supreme Court reinforced this in *V KZ 25/21*, holding that a scan of a hand-signed document transmitted by email does not satisfy the signature requirement of art. 119 § 1 pkt 4 KPK because the law requires the original signature, not a copy.^[212] In practice, a prosecutor might still act on an emailed complaint, but you have no enforceable right to demand that they do so, no proof of delivery to the correct person, and no basis to challenge a refusal to process it. The “we never received it” risk is real and unmanageable.

2.5 Method 5: In Person at Any Police Station (Komisariat)

If you are in Poland — even briefly — you may file at any police station regardless of territorial competence. *Wytyczne nr 1 Komendanta Głównego Policji z dnia 23 lipca 2015 r.* impose on every officer a binding obligation to accept a criminal complaint from any person who appears at any police unit, even when another unit or authority is territorially or materially competent.^[30] The receiving station must then forward the complaint to the competent *prokuratura* or police unit under art. 31 KPK.^[25]

This method is procedurally valid, but it adds a handling layer and delay — typically 1–2 weeks for internal forwarding. For a case worth 155,000 PLN, direct filing at the competent Kraków unit (or registered mail to that unit) is the cleaner path.

2.6 Comparison Table

Method	Procedural Validity	Cost (PLN)	Speed	Authentication Required	DIY Risk Level
1. Registered post (original + ink signature)	High —art. 119 KPK satisfied; binding SN precedent	50–100 (~12–25 EUR)	5–10 days (Sweden–Kraków)	Handwritten signature on original paper	LOW
2. Power of attorney (friend/lawyer files)	High —written PoA sufficient under KPK	240–540 (~60–135 EUR)	3–7 days (after PoA prepared)	Apostille + sworn translation for Swedish PoA	LOW–MEDIUM
3. ePUAP (general letter)	Uncertain —no dedicated service; untested for complaints	Free (if Profil Zaufany exists)	Same day	Profil Zaufany or qualified e-signature	HIGH
4. Email (scan/attachment)	Very low —no procedural effect per <i>SA Kraków II AKz 752/24</i>	Free	Same day	None (which is the problem)	VERY HIGH

Table 2 – continued

Method	Procedural Validity	Cost (PLN)	Speed	Authentication Required	DIY Risk Level
5. In-person at non-competent station	High — <i>KGP Wytyczne 1/2015</i> compels acceptance; automatic transfer	Travel cost only	Immediate at station	Valid ID; handwritten signature on protocol	LOW (if you are in Poland)

2.7 Apostille Requirements for a Swedish Power of Attorney

If you choose the PoA route, the table below summarises the authentication chain for a Swedish-executed document used in Poland.

Step	Requirement	Details	Cost	Legal Basis
1. Drafting	PoA in writing (Polish or Swedish)	Ordinary written form sufficient; notarisation not required by KPK, but practically preferred for foreign grants	Free (self-drafted)	Art. 119 KPK; ^[71] commentary ^[228]
2. Signature notarisation	<i>Notarius Publicus</i> (Sweden) certifies your handwritten signature	Bring passport or national ID; personnummer may be requested	~350–600 SEK (~140–240 PLN)	Hague Apostille Convention; ^[374] Swedish practice ^[372]
3. Apostille	Issued by <i>Notarius Publicus</i> in Sweden	Both Sweden and Poland are Hague Convention parties; apostille replaces full legalisation	~350 SEK (~140 PLN), often combined with step 2	Apostille Convention; ^[351] Embassy guidance ^[379]
4. Sworn translation	<i>Tłumacz przysięgły</i> (Poland) translates into Polish	Required regardless of apostille; 1–2 pages for a standard PoA	~50–60 PLN per page ^[62] ^[257]	Polish procedural practice ^[226]
5. Filing	Attorney-in-fact submits original + translation with complaint	File at competent <i>prokuratura</i> or any police station	None	Art. 304 § 1 KPK; <i>KGP Wytyczne 1/2015</i> ^[30]
TOTAL			~240–540 PLN (~60–135 EUR)	

2.8 DIY Risk Flags

 **RISK — Handwritten signature failure:** The single most common reason self-filed complaints fail at intake is a missing or non-compliant signature. A signature created in Adobe Acrobat, pasted from

a scan, or printed with the document is procedurally void. The Supreme Court has been unambiguous since 2006 (*I KZP 29/06*).^[211] Sign the paper with a pen. Send the original.

⚠ **RISK — Apostille misconception:** Many foreign residents assume that EU membership eliminates authentication formalities between member states. EU Regulation 2016/1191 abolishes apostille only for its enumerated document categories (birth, death, marriage, residence, citizenship, criminal-record extracts, and electoral qualifications).^[353] Power of attorney is not on that list. Attempting to file a Swedish PoA without an apostille will, in the best case, trigger a supplementary request for formal correction; in the worst case, the PoA will be rejected and your attorney-in-fact's actions will lack legal effect. The 400 SEK apostille fee is cheap insurance against procedural deadlock.

⚠ **RISK — Email false confidence:** Gov.pl public-information pages sometimes list email among contact options for police and prosecution.^[20] This is practical guidance for general inquiries, not a statement of procedural validity. The Court of Appeal in Kraków has explicitly ruled that email does not create procedural effects in criminal matters.^[191] Do not rely on it for your complaint.

Practical recommendation for Brantheim: If you are in Sweden and do not have a trusted representative in Poland already holding a valid PoA, **Method 1 (registered post with original ink signature)** is the most cost-effective and procedurally certain path. If you do have a reliable contact in Poland willing to follow the case through the investigation, **Method 2 (apostilled PoA + sworn translation)** offers better long-term management at a modest additional cost.

3. What the Document Must Contain

The Polish Criminal Procedure Code does not prescribe a statutory template for a *zawiadomienie o popełnieniu przestępstwa* (crime notification). What it does prescribe — through Articles 119 and 120 KPK — are the minimum formal requirements that every *pismo procesowe* (procedural submission) must satisfy to receive procedural standing ^[6] ^[71]. Fail these requirements and the prosecutor will issue a *wezwanie do uzupełnienia* (supplementary notice) under Article 120 KPK, giving you seven days to cure the defect. Miss that deadline, and your notification is deemed *bezsłuteczne* (without effect) ^[178].

This chapter sets out the section-by-section skeleton, explains how to phrase the critical threshold of *uzasadnione podejrzenie* (reasonable suspicion), and shows you how to frame your narrative in criminal terms so the prosecutor does not reclassify your complaint as a civil dispute during the *postępowanie sprawdzające* (screening proceeding) under Article 307 KPK.

3.1 Mandatory Formal Elements (*Elementy Formalne*)

3.1.1 Article 119 KPK: The Four Pillars Article 119 § 1 KPK requires every procedural submission to contain four elements ^[6] ^[75]: (1) designation of the authority (*oznaczenie organu*) — the specific prosecutor's office with its full address; (2) designation of the submitter (*oznaczenie osoby zgłaszającej*) — your full name, address, telephone number and e-mail (or a declaration that you lack them); (3) content of the request (*treść wniosku*), with reasoning (*uzasadnienie*) where necessary; and (4) date and handwritten signature (*data i własnoręczny podpis*). The signature requirement is strict — a scanned or printed signature does not satisfy Article 119 § 1 pkt 4 KPK ^[178]. Only a qualified electronic signature (when filing through ePUAP) substitutes for the handwritten one.

3.1.2 Article 120 KPK: The Seven-Day Supplementary Notice If your complaint lacks any Article 119 element, the authority issues a *wezwanie do usunięcia braku* under Article 120 § 1 KPK,

setting a **seven-day preclusive deadline** (*termin zawity*) [178]. Failure to cure renders the submission *bezskuteczne*. Before sending, verify: the prosecutor's full address; your full name, foreign address, passport number, telephone, and e-mail; clear title (*Zawiadomienie o podejrzeniu popełnienia przestępstwa*); chronological factual narrative; suspect identification (even partial); proposed legal qualification; evidentiary requests; request to be recognized as *pokrzywdzony*; handwritten signature and date; and list of attachments.

3.2 Section-by-Section Skeleton

The following structure follows prosecution training materials [30] [31] [86].

3.2.1 Designation of Authority (*Oznaczenie Organu*) The correct addressee: *Do Prokuratora Rejonowego w Krakowie — Prokuratura Rejonowa Kraków-Śródmieście Wschód, ul. Mosiężnicza 2, 30-965 Kraków*. This unit is territorially competent under § 123 of the *Regulamin wewnętrzny urzędowania prokuratury* because the suspects operated from an address within the Śródmieście Wschód district. Filing to the wrong unit is not fatal — the prosecutor must forward your document under Article 118 § 3 KPK — but it adds one to two weeks of delay.

3.2.2 Designation of the Complainant (*Oznaczenie Zawiadamiającego*) As a foreign citizen, you do not need a PESEL number. Polish criminal procedure does not differentiate between citizens and foreigners in the right to file a *zawiadomienie* [26] [27]. Include: full name (as in passport); date and place of birth; citizenship; passport number; residential address abroad; telephone and e-mail; and optionally a Polish correspondence address.

3.2.3 Designation of Suspects (*Oznaczenie Podejrzanych*) You do not need to know the suspects' full identities. Article 304 KPK imposes no such requirement [26] [30]. What you need is an *indywidualne oznaczenie* — enough data for authorities to identify the person through their own measures [33] [90].

For **Mateusz Szklarski**, state his full CEIDG data: name, NIP, REGON, registered address, and sole proprietorship of “GPU Computer.” For **Waldemar Łopata**, state your limited data: e-mail `waldek@gpucomputer.pl`; the fact that an e-mail from this address was sent one minute after an e-mail from `gpucomputer@gpucomputer.pl` on 10 March 2026, indicating coordinated action. Each identifier — e-mail, telephone, bank account, timing patterns — has evidentiary value and can be traced by the prosecutor once an investigation is opened.

3.2.4 Description of the Act (*Opis Czynu*) This is the heart of your document. Polish prosecution training teaches the “seven golden questions” (*siedem złotych pytań*) every description must answer [68] [72]: what happened, where, when, how (method of deception), why (motive of financial gain), by what means, and who was involved.

Write chronologically from the pre-contractual phase. Emphasize what the suspects said, did, and concealed **at the moment of contracting** — not merely that they failed to deliver afterward. Open with the negotiations and specific false assurances: *W dniach 7–8 stycznia 2026 r. nawiązałem kontakt handlowy z firmą GPU Computer. W wyniku negocjacji, podczas których Szklarski zapewnił mnie o posiadaniu towaru (karty graficznych RTX 4090) oraz o zdolności do jego dostarczenia w ciągu 2–3 tygodni, zawarłem umowę sprzedaży na łączną kwotę 155 000 zł*. Continue with payment, the delivery deadline, and the post-payment conduct — silence, contradictory excuses, disappearance. Each fact should be tied to specific evidence.

3.2.5 Legal Qualification (*Kwalifikacja Prawna*) You are not required to state the legal qualification — the prosecutor independently qualifies the act under Article 303 KPK [25] [46] [106]. Including it signals understanding of the criminal nature of your complaint. Use: *Zachowanie podejrzanych może wyczerpywać znamiona przestępstwa oszustwa z art. 286 § 1 kk w zw. z art. 18 § 1 kk (współsprawstwo)*. Note the conditional *może wyczerpywać*.

3.2.6 Reasoning (*Uzasadnienie*) Connect the facts to the statutory elements of Article 286 § 1 KK by explaining why this is fraud, not a contractual dispute. Reference SN III KK 216/25 (17 June 2025): mere non-delivery after taking a prepayment is not fraud unless a specific method of deception is proven [3]. Then explain the methods present in your case — false assurances about stock, contradictory post-payment excuses proving there was never a genuine supply chain, and coordinated cessation of communication.

3.2.7 Evidentiary Requests (*Wnioski Dowodowe*) Ask the prosecutor to obtain evidence you cannot access yourself: (1) your interrogation as *pokrzywdzony*; (2) bank disclosure of the account owner’s identity and transaction history; (3) e-mail provider disclosure of subscriber data for *gpucomputer@gpucomputer.pl* and *waldek@gpucomputer.pl*; (4) CEIDG history for Mateusz Szklarski’s business; and (5) securing of attached e-mail correspondence.

3.2.8 Request to Prosecute (*Wniosek o Ściganie*) Fraud under Article 286 KK is prosecuted *z urzędu* (ex officio), so a formal request is not legally required [13] [26]. Nonetheless, include it: *Wnoszę o wszczęcie i prowadzenie postępowania karnego oraz pociągnięcie sprawców do odpowiedzialności karnej. Jednocześnie wnoszę o zaliczenie mnie do pokrzywdzonych i przesłuchanie mnie przed wydaniem postanowienia kończącego postępowanie, zgodnie z art. 49 kpk.*

3.3 How to Phrase “*Uzasadnione Podejrzenie*”

The screening proceeding under Article 307 KPK turns on whether the facts give rise to *uzasadnione podejrzenie* that a crime was committed [104] [106]. Your language must signal that you are reporting a suspicion, not asserting guilt.

3.3.1 Safe Formulation The safest opening formula: *Na podstawie zebranych przeze mnie dowodów istnieje uzasadnione podejrzenie, że opisane zachowanie podejrzanych MOŻE wyczerpywać znamiona przestępstwa oszustwa z art. 286 § 1 kk.* This grounds the suspicion in evidence, uses the statutory phrase, and conditions the conclusion with *może* (may).

3.3.2 Avoiding Absolute Guilt Assertions Article 234 KK criminalizes *falszywe oskarżenie* — knowingly reporting a crime that was not committed [162]. Since 1 October 2023, this carries a mandatory prison sentence of three months to five years [135]. The key element is *knowledge of falsehood*; a good-faith complaint based on reasonable suspicion, even if mistaken, does not satisfy the *mens rea* [25] [162]. The Supreme Court held in SN IV KK 586/19 (23 February 2021) that subjective belief, even if later proven wrong, is not equivalent to knowingly misleading the authorities [162]. Use conditional language throughout. Never write: “The suspect committed fraud.” Write: “The circumstances give rise to the suspicion that the suspect may have committed fraud.”

3.3.3 Table: Safe vs. Risky Phrasing

Context	Risky phrasing (avoid)	Safe phrasing (use instead)
Opening statement	“ <i>Oskarżony oszukał mnie</i> ” (The accused defrauded me)	“ <i>Na podstawie zebranych dowodów istnieje uzasadnione podejrzenie, że...</i> ” [72]
Legal qualification	“ <i>Sprawca popełnił przestępstwo oszustwa</i> ”	“ <i>Zachowanie sprawcy MOŻE wyczerpywać znamiona przestępstwa...</i> ” [46]
Intent attribution	“ <i>Na pewno nie zamierzał dostarczyć towaru</i> ”	“ <i>W okolicznościach wskazujących na brak zamiaru wykonania umowy...</i> ” [45]
Knowledge attribution	“ <i>Świadomie wprowadził mnie w błąd</i> ”	“ <i>Przedstawił informacje niezgodne ze stanem faktycznym</i> ” [72]
Factual assertion	“ <i>Wiadomo, że firma była fikcyjna</i> ”	“ <i>Wynika z dokumentacji CEIDG, że firma nie posiadała...</i> ” [175]
Group allegation	“ <i>To zorganizowana grupa przestępcza</i> ”	“ <i>Współdziałanie dwóch osób przy użyciu wspólnej infrastruktury mailowej wskazuje na...</i> ” [51]
Contractual framing	“ <i>Nie wywiązał się z umowy</i> ”	“ <i>Wprowadził mnie w błąd co do swojego zamiaru wykonania umowy</i> ” [54]

Separate facts from inferences. State facts precisely and label inferences as inferences. The prosecutor evaluates whether your facts cross the threshold of *uzasadnione podejrzenie* — your job is to present them clearly and honestly [72] [143].

3.4 Distinguishing Criminal from Civil Framing

This distinction is the single greatest determinant of whether your complaint survives screening. Polish prosecutors routinely redirect commercial disputes to civil courts when the *zawiadomienie* reads like a breach-of-contract claim.

3.4.1 Language Signals: Pre-Contractual Deception, Not Post-Contractual Breach Criminal language focuses on the *method of deception* — what the suspect said, concealed, or misrepresented **before** the victim parted with money. Civil language focuses on the *consequence of non-performance* — the delivery that never arrived [51] [54]. For every sentence, ask: does this describe what the suspect did **before** I paid, or does it complain about what happened **after**? Rewrite the latter to emphasize pre-contractual deception. Instead of “*Towar nie został dostarczony*” (The goods were not delivered), write: “*Pomimo zapewnień o posiadaniu towaru i zdolności do jego natychmiastowej wysyłki, co było podstawą mojej decyzji o przedpłacie, po dokonaniu wpłaty okazało się, że towar nie istniał.*”

3.4.2 The Key Distinction: Knowledge at the Moment of Contracting The Supreme Court has repeatedly held that what matters for Article 286 KK is the suspect’s state of mind at the moment of contract formation — not what happened later [173]. The critical question: what did the suspect know or conceal in January 2026? If he already knew he could not deliver, or never had the goods he claimed to have, the deception crystallizes at that moment. Everything that follows — silence, contradictory excuses, broken refund promise — is circumstantial evidence of that initial intent, not the basis of the criminal charge itself [45] [173]. Dedicate the largest portion of your *opis czynu* to the period before and during contract formation. Present post-payment events under “*Okoliczności wskazujące na zamiar oszukańczy*” to make their evidentiary function clear.

3.5 DIY Risk Flags

3.5.1 ⚠️ RISK: Describing Non-Delivery as the Primary Harm If the dominant theme of your *zawiadomienie* is “I paid and did not receive the goods,” the prosecutor will likely classify your complaint as a civil breach under SN III KK 216/25. The Court held that “*sam pobranie zaliczki i niewykonanie umowy nie mieszczą się w żadnym z ustawowych sposobów popełnienia tego przestępstwa*” [3]. Non-delivery is the *result*; deception is the *crime*. Lead with the deception.

3.5.2 ⚠️ RISK: Asserting Guilt Rather Than Reasonable Suspicion While the actual risk of Article 234 KK prosecution for a good-faith complainant is low — SN IV KK 586/19 held that subjective belief, even if wrong, is not equivalent to knowingly misleading the authorities [162] — the formulation matters for credibility. A *zawiadomienie* that reads like an indictment may prompt disproportionate scrutiny of your evidentiary basis. The conditional approach — “*może wyczerpywać,*” “*istnieje podejrzenie*” — preserves your credibility and keeps the burden of proof where it belongs: on the prosecution.

4. The Deception Theory: Framing Art. 286 KK After SN III KK 216/25

4.1 The Supreme Court’s Standard

4.1.1 Case III KK 216/25 (17.06.2025): Prepayment Plus Non-Delivery Alone Does Not Constitute Fraud On 17 June 2025, the Supreme Court issued a landmark ruling in case III KK 216/25 that redraws the boundary between civil breach and criminal fraud. The Court quashed a conviction and acquitted a defendant who had taken a 4,564 PLN prepayment for photovoltaic panels, failed to deliver, and never refunded the money, finding the RPO’s *kasacja* “obviously justified” (*oczywiście zasadna*). The Court held that the factual description contained no identifiable statutory method of deception [5], emphasising that the Criminal Code does not criminalise conduct that “merely consists of inducing someone, for the purpose of obtaining a financial benefit, to dispose of property disadvantageously” [4].

4.1.2 The Three Statutory Methods Under Polish Law Article 286 § 1 KK exhaustively enumerates three methods: *wprowadzenie w błąd* (inducing error) through active misrepresentation or omission; *wyzyskanie błędu* (exploiting an existing error) [45]; and *wyzyskanie niezdolności* (exploiting cognitive incapacity) [5]. The first method encompasses deliberate concealment (*przemilczenie*) of material circumstances [14].

4.1.3 Why Non-Performance Is Not a Criminal Deception Method The takeaway from III KK 216/25 is structural: the Criminal Code deliberately leaves non-performance in the civil domain. The Court held that “the mere fact of taking a prepayment and subsequently failing to perform the obligation and not returning the amount constitutes only a basis for contractual liability, not the crime of fraud” [4]. Your complaint cannot simply describe non-delivery — it must identify a *deception* at the time of contracting.

4.2 Concealment as the Primary Theory

4.2.1 Case IV KK 403/24 (26.02.2025): Deliberate Concealment of Circumstances Affecting Performance Your strongest theory is concealment. In IV KK 403/24, the Supreme Court held: “It is sufficient to establish that the victim would not have concluded the contract had he known about the circumstances that were the subject of his being led into error. A perpetrator who deliberately conceals from his contracting party an objectively existing situation that affects the possibility of contract

performance fulfills the statutory elements of the crime under Article 286 § 1 KK” [45]. The Court of Appeal in Warsaw confirmed this in VIII AKa 299/23 [125].

4.2.2 Application to the Specific Facts: Supplier Risk, Business Status Your complaint should allege that the suspects knowingly concealed, in January 2026: (i) that they did not possess the ordered goods; (ii) that they lacked the means to procure them; (iii) that their ability to perform was contingent on obtaining funds from unspecified other sources; and (iv) that they had no supply chain capable of delivering within the contractual timeframe. The Supreme Court held in IV KK 631/21 that conditioning performance on future funding while concealing this dependency satisfies Article 286 § 1 KK [38].

4.2.3 Virtual Office Plus Netherlands Residence Suggesting Facade Business The suspects operated through a virtual office (*wirtualne biuro*) at ul. Mogilska 16/7 in Kraków while residing in the Netherlands. Virtual offices are lawful — the Supreme Administrative Court confirmed this in II FSK 3549/13 [63] — and their use alone proves nothing. But Polish courts evaluate this factor in context. Combined with non-performance, contradictory explanations, and absence of operational infrastructure, the virtual office becomes part of a broader picture: a *firma-krzak* (shell company) creating an appearance of legitimacy while the operator remains unreachable [50]. Frame this not as a standalone offense but as part of the mosaic showing lack of genuine business capacity at the time of contracting.

4.3 Contradictory Explanations as Evidence of Intent

4.3.1 The Two Incompatible Explanations Provided by the Suspects The suspects offered two fundamentally incompatible explanations: in February 2026 they claimed the goods had cleared customs and were en route; in May 2026 they claimed the Hong Kong supplier had gone bankrupt. These versions cannot both be true — goods that have cleared customs exist independently of a supplier’s solvency.

4.3.2 How Polish Courts Evaluate Contradictory Statements Contradictory explanations do not themselves constitute a statutory method of deception. They are, however, powerful circumstantial evidence (*poszlaki*) of fraudulent intent. The District Court in Gdańsk, in case XIV K 100/15, treated the defendant’s contradictory versions as demonstrating that he never intended to perform [113]. Polish doctrine requires “particularly thorough evaluation” of inconsistent statements, which must be scrutinised against the totality of evidence [80].

4.3.3 Circumstantial Evidence of Fraudulent Intent at Time of Contracting The contradiction proves that the suspects had no genuine procurement process. An honest entrepreneur knows why an order was not fulfilled. Two mutually exclusive explanations — each maintaining the fiction that goods once existed — support the inference that there were never any goods, and that the original representation of ability to supply was itself deceptive.

4.4 The Broken Refund Promise

4.4.1 Why the Refund Offer Does Not Negate Criminal Intent The suspects’ refund offer of 2 March 2026 and written promise of 10 March 2026 do not negate the criminal intent that existed in January 2026. Under Polish law, *czynny żal* (active remorse) under Article 15 KK applies exclusively to attempted crimes — it cannot extinguish liability for a completed offense [29]. The fraud was consummated when the victim transferred the prepayment based on deceptive representations.

4.4.2 The Broken Promise as Continued Deception More importantly, the unexecuted refund promise constitutes continued deception. The District Court in Grodzisk Mazowiecki, in case IV K

752/16, held that “avoiding contact with the victim, misleading him as to the timeline for refunding the prepayment — without actually refunding it — is typical in the scheme of fraud” [179]. The failure to honour the repayment deadline demonstrates that the promise was itself a delaying tactic.

4.5 Co-Perpetration

4.5.1 Evidence of Joint Action Between Both Suspects Your complaint should name both individuals and allege co-perpetration (*współsprawstwo*) under Article 18 § 1 KK. Evidence includes: shared email infrastructure (gpucomputer@gpucomputer.pl and waldek@gpucomputer.pl), the shared surname (Łopata), and coordinated repayment promises sent from both addresses within minutes of each other on 10 March 2026.

4.5.2 Relevant Legal Provision on Joint Perpetration Article 18 § 1 KK requires that the offense be committed “jointly and in concert” (*wspólnie i w porozumieniu*). The essence of co-perpetration is the acceptance of one’s own contribution to the criminal goal and awareness of complementing the actions of others [202]. No structured criminal group is required — an agreement between two persons to achieve a common result is sufficient.

4.6 Criminal Intent at Moment of Payment

4.6.1 Why Intent Must Exist at Time of Contract Formation The mens rea for Article 286 § 1 KK is *dolus directus coloratus* — a specifically characterised direct intent encompassing both the goal (financial gain) and the method (deception) [37]. As the Supreme Court held in III KR 278/73: “The perpetrator must not only want to obtain a financial benefit but must also want to use a specific method of action or omission for that purpose” [38]. This intent must exist at the moment of contract formation, not develop later [40].

4.6.2 How Post-Factum Behaviour Proves Pre-Existing Intent Direct evidence of the suspects’ state of mind in January 2026 will be unavailable, so you must rely on circumstantial evidence. Polish courts permit this: the Court of Appeal in Katowice held that “in determining the perpetrator’s intent, all circumstances must be considered, in particular his financial situation, the scale of assumed obligations, his conduct after receiving the money, and his attitude toward the victim as deadlines pass” [45]. The contradictory explanations, broken refund promise, virtual office, Netherlands residence, absence of procurement documentation, and two-person operation — taken together — form a pattern from which the inference of pre-existing fraudulent intent follows.

4.7 Concrete Polish Wording

4.7.1 Draft Paragraph for the Complaint Showing the Concealment Theory

w dniu [date] stycznia 2026 r. w Krakowie, działając wspólnie i w porozumieniu z Waldemarem Łopatą, w celu osiągnięcia korzyści majątkowej, wprowadził pokrzywdzonego [your name] w błąd przez przemilczenie okoliczności, że prowadzona przez nich działalność gospodarcza ma charakter pozorowany — prowadzona jest wyłącznie za pośrednictwem wirtualnego biura w Krakowie, podczas gdy sprawcy faktycznie przebywają i prowadzą działalność z Holandii, nie posiadają oni zdolności wykonawczej umowy sprzedaży towaru, nie dysponują towarem, nie posiadają środków finansowych na jego zakup, a wykonanie zobowiązania jest uzależnione od uzyskania w nieokreślonej bliżej czasowo przyszłości środków finansowych od innych kontrahentów, i w ten sposób doprowadzili pokrzywdzonego do niekorzystnego rozporządzenia własnym mieniem w postaci kwoty

[amount] zł, którą pokrzywdzony przekazał na rachunek bankowy sprawców, a którejby nie przekazał gdyby znał prawdziwy stan rzeczy, po czym pomimo upływu terminu realizacji zamówienia oraz pomimo złożenia przez sprawców sprzecznych wyjaśnień co do przyczyn opóźnienia (najpierw twierdząc, że towar jest w drodze i czeka na odprawę celną, następnie że dostawca z Hongkongu zbankrutował), towaru nie dostarczyli ani zaliczki nie zwrócili, pomimo złożonej 10 marca 2026 r. pisemnej obietnicy zwrotu

— to jest przestępstwo z art. 286 § 1 kk w związku z art. 18 § 1 kk

4.8 Risk Flag

⚠ CRITICAL WARNING: The deception theory is the single most important element of your complaint. After SN III KK 216/25, Polish prosecutors screen every fraud complaint for a specific statutory method of deception. If your *zawiadomienie* merely states that the suspects took money and did not deliver, the prosecutor will refuse to open an investigation (*odmowa wszczęcia śledztwa*), treating the matter as purely civil. Frame the case from the first sentence as deliberate concealment at the time of contracting. The concealment theory in section 4.7 is your safest path through the screening threshold. All other evidence — contradictory explanations, broken promise, virtual office — corroborates the intent element, but the concealment itself must be stated clearly in the factual description.

5. Evidence Annexes: What to Attach and in What Form

The standard for opening a criminal investigation in Poland is merely *uzasadnione podejrzenie* (justified suspicion) under Article 304a § 1 KPK^[28] — far lower than the proof threshold in civil litigation. This chapter sets out what to attach, in what form, and how to handle the language question cost-effectively.

5.1 Recommended Evidence Package

Include every document that helps establish the deception, the fund transfers, and the suspect's evasive conduct. There is no statutory limit on attachments, but disorganisation weakens your position.

SWIFT payment confirmations. Attach copies of both wire transfers — the 150,000 PLN of 09.01.2026 and the 5,000 PLN of 17.01.2026. These anchor the *wyrządzenie szkody majątkowej* (causing of property damage), a mandatory element of Article 286 § 1 KK. Include the SWIFT MT103 or equivalent confirmation; the transaction reference lets the prosecutor trace the funds.

Complete email correspondence. Print the entire email chain from both mailboxes — `waldek@gpucomputer.pl` and `gpucomputer@gpucomputer.pl` — in chronological order, preserving original headers (From, To, Date, Message-ID). These metadata fields establish authenticity under Article 7 KPK^[127]. The chronological flow itself is evidence: shifting explanations support the inference of deliberate deception.

Proforma invoice 2/01-2026. Defines the contractual baseline — what was promised, at what price, and under what delivery terms. It is the reference point against which the *metoda oszukańcza* (method of deception) is measured.

KRZ printout. A current printout from the *Krajowy Rejestr Zadłużonych* (National Register of Indebted Persons) dated 28.05.2026 or later shows whether the suspect's entity is in bankruptcy or restructuring. This matters for the prosecutor's assessment of whether civil recovery remains viable.

CEIDG printout for Mateusz Szklarski. The *Centralna Ewidencja i Informacja o Działalności Gospodarczej* (Central Register of Business Activity) entry confirms trading status, registered address, and NIP. If the address is a virtual office (as at ul. Mogilska 16/7), that fact becomes supporting evidence in the deception mosaic.

Screenshots of website and social media evidence. Capture any online profiles or promotional material that induced you to contract, with the capture date visible. Courts accept screenshots as documentary evidence under Article 115 § 1 KK, which defines *dokument* to include any computer-recorded information bearing legal significance^[125].

5.2 Form Requirements

Copies are sufficient at the complaint stage. Ordinary photocopies (*kserokopie*) satisfy the filing requirements^[21]. The prosecutor may later request originals for forensic examination, but copies are standard practice initially.

Submit both paper copies and electronic originals. Police guidelines recommend attaching a USB drive with the electronic originals^[109]. For emails, include raw .eml or .msg files with headers intact. Electronic versions preserve metadata that printouts lose.

Organise chronologically with an index. Number every page sequentially and prepare a one-page table of contents (*spis treści*) listing each exhibit by number, description, date range, and page count. This lets the prosecutor locate documents during the *postępowanie sprawdzające* (screening proceeding) and signals that you are a methodical complainant.

5.3 Translation Requirements

5.3.1 Sworn translations are not required at the complaint stage Article 204 § 2 KPK provides that a translator shall be called only “*jeżeli zachodzi potrzeba*” (if there is a need)^[94]^[95]. This conditional phrasing means the obligation arises when the investigative organ formally determines translation is necessary, not automatically upon filing^[63]. At the complaint stage, many prosecutors read English as a matter of course in commercial fraud cases^[42].

5.3.2 Unofficial translations with a signed accuracy statement The safer and more cooperative approach is to prepare your own unofficial Polish translations of all key documents and attach them alongside the English originals. Sign each translation with the following statement: “*Oświadczam, że powyższe tłumaczenie zostało przeze mnie sporządzone w najlepszej wierze i wiernie oddaje treść dokumentu w języku angielskim.*” (I declare that the above translation was prepared by me in good faith and faithfully reflects the content of the document in the English language.)

5.3.3 Formal undertaking to provide sworn translations if required Include the following undertaking in the body of your complaint or as a separate attachment:

W razie potrzeby zapewnię tłumaczenie przysięgłe dowolnego z załączonych dokumentów na każdym etapie postępowania, w terminie wyznaczonym przez organ prowadzący postępowanie.

This language directly addresses the prosecutor’s potential concern about later admissibility, demonstrates good faith, and forecloses any argument that you are attempting to obscure the contents of your evidence.

5.3.4 When sworn translations become mandatory Sworn translations (*tłumaczenie przysięgłe*) become necessary only when the prosecutor or court formally requests them under Article 204 § 2 KPK^[92],

or when a document must be formally admitted as evidence in court proceedings^[92]. You can cross that bridge when you reach it.

5.3.5 Cost estimate table: sworn vs. unofficial translations The table below provides current (2025) cost estimates based on the Ministry of Justice tariff and market rates. One page equals 1,125 characters with spaces^[58].

Service	Official Tariff (PLN/ page)	Market Rate Range (PLN/page)	Est. Total for ~40 Pages (PLN)	Est. Total (EUR ~4.20)
Sworn translation: English → Polish (official tariff)	44.07 ^[46]	—	~1,763	~420
Sworn translation: English → Polish (market rate)	—	39–50 ^[40] ^[59]	~1,560–2,000	~370–475
Sworn translation: Swedish → Polish (market rate)	—	50–58 ^[124] ^[163]	~2,000–2,320	~475–550
DIY unofficial translation	—	0	0	0
Sworn translation if later required (selective: 10 pages)	44.07	—	~441	~105

For this case, the principal documentary evidence runs to approximately 35–45 pages. A full sworn translation upfront costs roughly 1,560–2,000 PLN (370–475 EUR); your own unofficial translations cost nothing. If the prosecutor later requests sworn translations of only critical exhibits, the selective cost falls to roughly 440–900 PLN. Full sworn translations become necessary only if the case proceeds to trial.

5.4 Can Evidence Be Submitted Later?

5.4.1 Ongoing right to submit evidence throughout proceedings Yes. You are not required to attach every conceivable document to the initial complaint. Under Articles 315 and 316 KPK, the *pokrzywdzony* (injured party) has the right to submit evidence motions and participate in evidentiary proceedings throughout the *postępowanie przygotowawcze* (preparatory proceedings)^[85]. You may supplement your submission as new documents emerge — for example, if you obtain additional bank records, the EPU payment order once issued, or correspondence from the suspect’s other victims.

5.4.2 The initial package only needs to establish justified suspicion The threshold for opening an investigation is deliberately low. Article 304a § 1 KPK requires only that the available information indicate *uzasadnione podejrzenie* (justified suspicion) that an offence has been committed^[28]. Your initial evidence package should demonstrate: (a) a financial transaction occurred, (b) the suspect made specific representations inducing that transaction, and (c) those representations were deceptive or knowingly unfulfillable. Everything else can follow.

5.5 DIY Risk Flag

⚠ **RISK:** Submitting only English-language documents without any Polish summary or unofficial translation may cause the prosecutor to issue a *wezwanie do uzupełnienia* (supplementary notice), delaying the screening decision by 2–3 weeks while you respond. The complaint will not be dismissed solely for this reason — the standard under Article 304a KPK is substantive, not formal — but the delay is avoidable. The 30-day screening deadline under Article 307 § 1 KPK is already *termin instrukcyjny* (instructive, not preclusive)^[8], and you should not grant the prosecutor additional reasons to extend it further. Attach your unofficial translations, include the formal undertaking from Section 5.3.3, and your file will move through the initial review without unnecessary interruption.

6. What Happens After Filing: Procedure, Timelines, and Appeals

Filing the *zawiadomienie* (crime notification) marks the start of a structured procedural path. This chapter maps each stage, the deadlines that bind both you and the prosecution, and the appeal mechanism that can rescue a refused case. Missing one deadline is often fatal; knowing when each clock starts is essential.

6.1 Postępowanie Sprawdzające (Screening Phase)

Once your notification is logged, the prosecution opens a *postępowanie sprawdzające* (screening proceeding) under art. 307 KPK. The prosecutor evaluates your submission along three planes: factual (*plaszczyzna merytoryczna* — did the event occur), legal (*plaszczyzna prawna* — does the conduct constitute a crime), and procedural (*plaszczyzna procesowa* — are there bars such as amnesty or limitation).^[3] Within this framework the prosecutor may request supplementary documents, verify facts through informal checks, or apply *czynności operacyjno-rozpoznawcze* (operational reconnaissance measures).^[1] The prosecutor may also summon you once for a witness interview under art. 307 § 3 KPK, but solely to supplement the data in your notification.^[3] Suspect interrogation, search, seizure, and expert opinions are not permitted in this phase — they require a formal *śledztwo* (investigation).^[3]

Art. 307 § 1 zd. 2 KPK sets a 30-day maximum for screening. This is a *termin instrukcyjny* (instructive deadline), not a preclusive one — exceeding it does not invalidate the proceeding but may trigger disciplinary liability for the prosecutor, and crucially, after 30 days the prosecutor *cannot* refuse to open an investigation; only a *śledztwo* or *dochodzenie* (inquiry) remains permissible.^[23] In practice, complex fraud cases often push against this limit.

6.2 The 6-Week Notification Rule

Art. 306 § 3 KPK provides your first procedural safeguard: if six weeks pass without notification of an opening or refusal, you may file a *zażalenie na bezczynność* (complaint against inaction) to the *prokurator nadrzędny* (superior prosecutor) or the prosecutor exercising supervisory authority — filed directly with that superior, bypassing the silent unit.^{[15][24]} Unlike most deadlines in Polish criminal procedure, this *zażalenie* has **no closing deadline** — you may file it at any time after the six-week window expires.^[24] In practice, however, delay weakens your position; it is advisable to calendar the six-week mark at the moment your *zawiadomienie* is registered.

6.3 If Śledztwo Is Opened

If the prosecutor finds *uzasadnione podejrzenie* (reasonable suspicion), he issues a *postanowienie o wszczęciu śledztwa* (decision to open an investigation) under art. 305 § 3 KPK, served on both you and the *pokrzywdzony* (injured party) with instructions about your rights.^{[43][37]}

From this point you acquire active rights. Under art. 315 § 1 KPK you may submit *wnioski dowodowe* (evidence motions) at any stage — there is no evidence preclusion in preparatory proceedings.^[53] Under art. 156 KPK you may review case files; early access requires prosecutorial consent, but once the suspect is notified of the final review of materials, access becomes mandatory.^[110] Under art. 316 § 1 KPK you may participate in *czynności niepowtarzalne* (non-repeatable procedural acts) that cannot be replicated at trial, unless delay would risk loss of evidence.^[38]

For fraud cases under art. 286 KK, *śledztwo* typically lasts six to eighteen months, depending on financial complexity and whether international legal assistance is needed.

6.4 If Refused: Postanowienie o Odmowie Wszczęcia

If the prosecutor concludes that no *śledztwo* should open, he issues a *postanowienie o odmowie wszczęcia śledztwa* (decision refusing to open an investigation). Grounds derive from art. 17 § 1 KPK: no prohibited act occurred (point 2), the act lacks offense features (point 3), it does not constitute a crime (point 4), the offense is time-barred (point 7), or the *znikoma społeczna szkodliwość* (insignificant social harmfulness) exception applies (point 9).^[16] The decision must be reasoned and served on you together with instructions about your right to appeal.^[43]

6.5 Appeal: Zażalenie

The *zażalenie* on a refusal is the most procedurally dangerous moment for a DIY complainant. Art. 306 § 1 KPK grants exactly **7 days** from the date the *postanowienie* is served.^[17] This is a *termin zawity* (preclusive deadline) — miss it by one day and the refusal becomes final.^[16]

You file the *zażalenie* in writing **through the prosecutor who issued the refusal**, who must forward it to the *sąd rejonowy* (district court) with local jurisdiction — an exception to the general rule of art. 465 § 2 KPK.^{[18][55]} Before filing, you have an automatic right to review the case files under art. 306 § 1b KPK; the prosecutor may provide them electronically, and no application or consent is required.^{[101][15]}

The court reviews the appeal at a closed hearing (*posiedzenie*, art. 329 KPK).^[16] You need not cite specific statutory provisions; it is sufficient to describe what the prosecutor failed to do, what evidence was not gathered, and why the decision is wrong — typically on one of three grounds: incorrect legal qualification, incomplete factual findings, or insufficient evidence assessment.^[18] The court may uphold the refusal, quash it and remand, or quash it in part. Courts have shown willingness to reverse prosecutors who closed files without gathering basic evidence.^[55]

⚠ DIY Risk Flag: The 7-day deadline is the single most dangerous trap in the post-filing process. Calendar the service date immediately, request file review on day one, and prepare the *zażalenie* draft in advance. If the refusal rests on complex legal analysis — for example, the prosecutor found “insignificant social harmfulness” in a 155,000 PLN fraud — engaging a Polish criminal lawyer for this stage is strongly advisable. Legal fees for a *zażalenie* typically range from 3,000 to 8,000 PLN (approximately EUR 700–1,850), but a missed deadline costs you the entire case.

6.6 From Śledztwo to Court

If the investigation yields sufficient evidence, the prosecutor files an *akt oskarżenia* (indictment) and you automatically lose your status as a party. To retain active rights, you must declare that you will act as *oskarżyciel posiłkowy* (subsidiary prosecutor) no later than the opening of the main trial hearing (art. 54 § 1 KPK).^[68] This is another preclusive deadline — fail to declare and you become a passive observer.

As *oskarżyciel posiłkowy* you operate independently of the state prosecutor: you may file evidence motions, examine witnesses, and appeal the judgment.^[68] You may also file a *wniosek o naprawienie szkody* (claim for damages) up to the closure of the trial's main hearing (art. 49a KPK), avoiding the cost of a separate civil suit.^[97]

6.7 Table: Complete Timeline Overview

Stage	Timeline	Complainant Action Required	DIY Risk Level
Screening (<i>postępowanie sprawdza- jące</i>)	Up to 30 days (art. 307 § 1 zd. 2 KPK) ^[23]	Respond to supplementary data requests; attend witness interview if summoned	Low
6-week silence period	6 weeks from filing (art. 306 § 3 KPK) ^[15]	File <i>zażalenie na bezczynność</i> to superior prosecutor if no notification received	Low
Investigation opened (<i>śledztwo</i>)	6–18 months for fraud	Submit evidence motions (art. 315 § 1 KPK) ^[53] ; request file review (art. 156 KPK) ^[110] ; participate in non-repeatable acts (art. 316 § 1 KPK) ^[38]	Low–Medium
Refusal issued (<i>odmowa wszczęcia</i>)	Served with reasoning (art. 305 § 4 KPK) ^[43]	Review files (art. 306 § 1b KPK) ^[15] ; file <i>zażalenie</i> within 7 days via issuing prosecutor to <i>sąd rejonowy</i> (art. 306 § 1–2 KPK) ^{[17][18]}	High
Indictment filed (<i>akt oskarżenia</i>)	Before trial opens	Declare as <i>oskarżyciel posiłkowy</i> (art. 54 § 1 KPK) ^[68] ; file civil compensation claim (art. 49a KPK) ^[97] if desired	Medium

The table above compresses the full post-filing path. The screening phase and the investigation itself are manageable without legal representation if you maintain organised records and meet correspondence deadlines. The *zażalenie* stage is where the cost of self-representation can become the cost of permanent procedural loss. Treat the 7-day window with the same gravity you applied to assembling the evidentiary core of your original complaint.

7. DIY Risk Assessment: Where Self-Representation Saves Money vs. Where It's False Economy

Polish criminal procedure is forgiving at entry but punishing at appeal. This chapter maps each stage to its concrete hazard so you spend where protection actually matters.

7.1 Low Risk: Filing the Zawiadomienie

7.1.1 Template-based filing is safe; minor errors trigger supplementary notice, not dismissal.

If your complaint omits a detail, the prosecutor must issue a *wezwanie do uzupełnienia* (supplementary notice) under Article 120 KPK ^[143]. Dismissal at this stage almost never follows from imperfect drafting. The real risk is substantive: framing the case as civil non-delivery rather than *przemilczenie niezdolności do realizacji* (concealment of inability to perform) triggers wrongful civil classification. The Chapter 8 template follows the doctrinal structure from SN III KK 216/25 to avoid this.

7.1.2 Cost savings vs. lawyer: ~300–600 PLN.

A lawyer charges 300–600 PLN (65–130 EUR) to draft a *zawiadomienie* ^[143]. Filing yourself costs 0 PLN; optional expenses are sworn translations (~55–70 PLN per page) and postage ^[162].

7.2 Medium Risk: Responding to Screening-Phase Questions

7.2.1 Prosecutor may request clarification; simple responses are manageable.

During *postępowanie sprawdzające* (screening), follow-up questions concern facts — dates, transfers, emails — requiring no legal training, only an organised evidence folder (Chapter 5). The 30-day *termin instrukcyjny* under Article 307 § 1 zd. 2 KPK is instructive, not preclusive ^[252]. The risk is inattention: failing to respond leads the prosecutor to treat the complaint as abandoned.

7.3 High Risk: Zażalenie on Refusal

7.3.1 7-day preclusive deadline — missing it ends the case.

A *postanowienie o odmowie wszczęcia śledztwa* gives you exactly **7 days from service** to file a *zażalenie* under Article 306 § 1 KPK ^[55]^[262]. This *termin zawity* is absolute: miss it, and refusal becomes final ^[19].

⚠️ DIY RISK FLAG: Without a Polish address for service (*adresat dla doręczeń*) under Article 138 KPK, the refusal is deemed served at your last known address — delivery abroad consumes 5–10 days of your 7-day window ^[21].

7.3.2 Legal argumentation requires doctrinal knowledge; lawyer strongly recommended.

The *zażalenie* must identify the specific legal error — misapplication of the *metoda oszustwa* requirement under Article 286 § 1 KK or failure to weigh *poszlaki* of intent ^[18]. A lawyer's brief costs 3,000–8,000 PLN (700–1,850 EUR) ^[288]^[294].

7.3.3 Cost: ~3,000–8,000 PLN; this is where DIY is genuinely false economy.

Spending 300–600 PLN on a lawyer for the initial complaint becomes false economy if that lawyer must then master the file for the *zażalenie* at 10× the cost. DIY the complaint; engage counsel immediately upon refusal.

7.4 High Risk: Oskarżyciel Posiłkowy at Trial

7.4.1 Requires *adwokat* or *radca prawny* (Article 55 § 2 KPK in conjunction with Article 119 § 3 KPK).

The *subsydiarny akt oskarżenia* must be drafted and signed by an *adwokat* or *radca prawny*; a layperson cannot file it ^[265]^[230]. Trial participation — examining witnesses, making closing arguments in Polish against professional defence — is practically impossible without qualified representation.

7.5 The Optimal Strategy

7.5.1 DIY the complaint → monitor screening → hire lawyer immediately if refusal issued.

Statistics support staging: ~15–20% of complaints receive initial refusal, ~30% end in *umorzenie* [271]. The remaining 50–55% advance without needing a *zażalenie*. Paying a lawyer upfront for a complaint the prosecutor would accept anyway is poor value.

7.5.2 Total estimated cost: 0–540 PLN (DIY route) vs. 3,000–10,000 PLN (full lawyer representation).

Stage	DIY Risk	Cost DIY	Cost Lawyer	Fatal Error?
Filing <i>zaw-iadomienie</i>	Low	0–540 PLN [20]	300–600 PLN [143]	No
Screening responses	Medium	0 PLN	500–1,500 PLN	No
<i>Zażalenie</i> on refusal	High	0 PLN	3,000–8,000 PLN [288]	Yes [55]
Trial / <i>oskarżyciel posiłkowy</i>	High	N/A (barred)	5,000–10,000 PLN [294]	N/A
Total	—	0–540 PLN	3,000–10,000+ PLN	—

The refusal letter is the inflection point: from that moment, proceeding without counsel risks permanent loss of the case.

⚠ **DIY RISK FLAG:** Designate a reliable Polish address for service under Article 138 KPK. Without it, the 7-day *zażalenie* deadline starts before you physically receive the refusal, and the case may die in transit [21].

8. Ready-to-Adapt Polish-Language Template: *Zawiadomienie o Popełnieniu Przestępstwa*

⚠ **CRITICAL INSTRUCTIONS BEFORE USING THIS TEMPLATE**

This template is written entirely in Polish as a formal legal document (*pismo procesowe*) that satisfies the requirements of art. 119 § 1 KPK[6][71]. It incorporates the “deception pyramid” framing developed in Chapters 3 and 4: the concealment theory (*przemilczenie*) as the primary method of deception, the contradiction strategy as circumstantial evidence of intent, and the two-person operation as a basis for pleading co-perpetratorship (*współsprawstwo*). The English-language annotations explain the legal reasoning; remove them before printing. You must sign the final page by hand — a scanned or printed signature is procedurally invalid[210][211].

8.1 Template Header

8.1.1 Oznaczenie organu and oznaczenie zawiadamiającego

Do
Prokuratury Rejonowej Kraków-Śródmieście Wschód
ul. Mosiężnicza 2
30-965 Kraków

Jurisdiction note: The registered seat of Mateusz Szklarski’s sole proprietorship is at ul. Mogilska 16/7, Kraków, which falls within the territorial jurisdiction of Prokuratura Rejonowa Kraków-Śródmieście Wschód. Fraud is a material crime (*przestępstwo materialne*); the place of commission includes both the perpetrator’s location (Kraków) and where the financial loss occurred (Warsaw — bank transfer)^{[4][5]}. Filing directly at the competent Kraków unit avoids the 1–2 week delay of automatic transfer under § 122 ust. 3 Regulaminu.

ZAWIADOMIENIE O PODEJRZENIU POPEŁNIENIA PRZESTĘPSTWA

art. 304 § 1 KPK w zw. z art. 286 § 1 KK w zw. z art. 18 § 1 KK

Dane zawiadamiającego:

Imię i nazwisko:

Data i miejsce urodzenia:

Obywatelstwo: szwedzkie

Numer paszportu:

Adres zamieszkania:

Numer telefonu:

Adres e-mail:

Formal requirement: A foreign citizen filing a criminal complaint in Poland must provide their passport number (no PESEL is required)^[31]. Include your full residential address, phone number, and email — the prosecution service must be able to reach you for supplementary notices under art. 307 § 1 KPK^[104].

8.2 Wstęp

8.2.1 Formal opening and statement of reasonable suspicion

WSTĘP

Na podstawie art. 304 § 1 Kodeksu postępowania karnego zawiadamiam o uzasadnionym podejrzeniu popełnienia przestępstwa oszustwa, z art. 286 § 1 Kodeksu karnego w związku z art. 18 § 1 Kodeksu karnego, przez poniżej wskazane osoby, działające wspólnie i w porozumieniu.

Why this wording: The phrase “*uzasadnionym podejrzeniu*” (reasonable suspicion) reflects the standard of art. 304a § 1 KPK^[28]. It signals that you are reporting facts that warrant investigation,

not asserting proven guilt — this protects you from exposure under art. 234 KK (false accusation), which requires conscious knowledge of falsehood^[80]. The reference to *wspólnie i w porozumieniu* sets up the co-perpetratorship theory under art. 18 § 1 KK^[202].

8.3 Opis Czynu (Factual Narrative)

8.3.1 Chronological narrative from January 2026 with all case-specific details

I. OPIS CZYNU

W dniu 12 stycznia 2026 r. w Warszawie, pokrzywdzony — Magnus Brantheim, obywatel szwedzki, zamieszkały w Warszawie — na podstawie oferty handlowej złożonej przez Mateusza Szklarskiego, prowadzącego jednoosobową działalność gospodarczą pod nazwą "GPUcomputer" (NIP: 8661681248, zarejestrowaną w CEIDG pod adresem ul. Mogilska 16/7, Kraków), dokonał przedpłaty na rzecz tejże działalności w łącznej kwocie 155 000,00 zł (sto pięćdziesiąt pięć tysięcy złotych), w tym:

- a) przelewem SWIFT kwoty 150 000,00 zł (sto pięćdziesiąt tysięcy złotych),
- b) przelewem SWIFT kwoty 5 000,00 zł (pięć tysięcy złotych),

na podstawie faktury proforma nr 2/01-2026.

Przed dokonaniem płatności Mateusz Szklarski, działając w porozumieniu z Waldemarem Łopatą (również posługującym się nazwiskiem Szklarski-Łopata, zwanym dalej "Waldek"), zapewnił pokrzywdzonego — drogą korespondencji elektronicznej z adresów waldek@gpucomputer.pl oraz gpucomputer@gpucomputer.pl — o posiadaniu towaru (kart graficznych), o jego gotowości do wysyłki oraz o zdolności do realizacji umowy w uzgodnionym terminie. Zapewnienia te zostały złożone w sposób wzbudzający zaufanie, pomimo że — jak wynika z późniejszych zdarzeń — sprawcy nie posiadali wzmiankowanego towaru, nie posiadali środków finansowych na jego zakup, ani realnej zdolności wykonawczej umowy.

W dniu 24 lutego 2026 r. Waldemar Łopata w wiadomości e-mail poinformował pokrzywdzonego, że "customs cleared the goods today, missing components will arrive" ("towar został dzisiaj odprawiony przez celników, brakujące elementy dotrą"), co wskazywało na rzekomy postęp w realizacji zamówienia. Pokrzywdzony na podstawie tego zapewnienia kontynuował oczekiwanie na dostawę.

W dniu 2 marca 2026 r. Mateusz Szklarski złożył pokrzywdzonemu ofertę pełnego zwrotu wpłaconej kwoty 155 000,00 zł, przyjmując — w kontakcie z pokrzywdzonym — do wiadomości, że realizacja umowy nie nastąpi.

W dniu 10 marca 2026 r., w odstępie jednej minuty, z obu adresów e-mail sprawców — odpowiednio z waldek@gpucomputer.pl oraz gpucomputer@gpucomputer.pl — została wysłana do pokrzywdzonego pisemna obietnica zwrotu kwoty 155 000,00 zł wraz z odsetkami w terminie 14 dni roboczych. Fakt jednogminutowego nadania wiadomości z dwóch różnych

skrzynek pocztowych, obsługiwanych przez dwie odrębne osoby, wskazuje na koordynację działań sprawców i przyjęcie wspólnego planu postępowania.

Termin zwrotu upłynął w dniu 31 marca 2026 r. bez dokonania jakiegokolwiek wpłaty na rzecz pokrzywdzonego.

W dniu 8 kwietnia 2026 r. pokrzywdzony złożył pozew w elektronicznym postępowaniu upominawczym (EPU) przeciwko Mateuszowi Szklarskiemu (Nc-e 552126/26, Sąd Rejonowy Lublin-Zachód w Lublinie), w celu sądowego zabezpieczenia swojego roszczenia cywilnego.

W dniu 13 maja 2026 r. Waldemar Łopata w korespondencji e-mail podał pokrzywdzonemu nowe wyjaśnienie przyczyny niedostarczenia towaru, twierdząc, że "hongkoński dostawca ogłosił upadłość" ("Hong Kong supplier went bankrupt"). Wyjaśnienie to jest w bezpośredniej sprzeczności z wcześniejszą wersją z dnia 24 lutego 2026 r., zgodnie z którą towar miał być już odprawiony przez służby celne i oczekiwać jedynie na brakujące elementy.

W dniu 28 maja 2026 r. pokrzywdzony dokonał sprawdzenia w Krajowym Rejestrze Zadłużonych (KRZ), które nie wykazało wobec Mateusza Szklarskiego ani wobec działalności gospodarczej GPUcomputer jakiegokolwiek wpisu o upadłości lub restrukturyzacji, co podważa wiarygodność twierdzenia o upadłości dostawcy zewnętrznego.

8.3.2 Emphasis on pre-contractual concealment and contradictory explanations

II. OKOLICZNOŚCI WSKAZUJĄCE NA ZAMIAR OSZUKAŃCZY W CHWILI ZAWARCIA UMOWY

Na podstawie zebranych informacji i dokumentów zachowanie sprawców nosi cechy przestępstwa oszustwa z art. 286 1 KK — nie zaś wyłącznie odpowiedzialności kontraktowej — z następujących powodów:

1) PRZEMILCZENIE NIEZDOLNOŚCI DO WYKONANIA UMOWY

Mateusz Szklarski i Waldemar Łopata, w chwili zawierania umowy i pobierania przedpłaty w styczniu 2026 r., świadomie zataili przed pokrzywdzonym obiektywnie istniejącą sytuację wpływającą na możliwość realizacji zawartej umowy, to jest: że nie posiadali wzmiankowanego towaru, nie posiadali środków finansowych na jego zakup, nie posiadali realnej zdolności wykonawczej zamówienia, a wykonanie zobowiązania było uzależnione od uzyskania w nieokreślonej bliżej czasowo przyszłości środków finansowych od innych kontrahentów. Przemilczenie tych okoliczności — będących istotnymi dla decyzji o rozporządzeniu mieniem — wypełnia znamię "wprowadzenia w błąd" w rozumieniu art. 286 1 KK.

2) SPRZECZNE WYJAŚNIENIA JAKO POSZŁAKA ZAMIARU OSZUKAŃCZEGO

Sprawcy podali dwie wzajemnie wykluczające się wersje wydarzeń:

najpierw twierdząc, że towar został odprawiony przez celników (24.02.2026), następnie — że dostawca z Hongkongu ogłosił upadłość (13.05.2026). Jeżeli towar faktycznie przeszedł odprawę celną 24 lutego 2026 r., to w jaki sposób jego brak mógł wynikać z upadłości dostawcy z Hongkongu trzy miesiące później? Tak fundamentalna niespójność wyjaśnień, pozbawiona jakiegokolwiek racjonalnego uzasadnienia, wskazuje, że żadna z podawanych wersji nie była prawdziwa, a obie stanowiły kolejne etapy utrzymywania pokrzywdzonego w błędzie co do rzeczywistego stanu realizacji zamówienia.

3) WIRTUALNE BIURO I REZYDENCJA ZAGRANICZNA JAKO ELEMENT POZOROWANEJ DZIAŁALNOŚCI

Działalność gospodarcza Mateusza Szklarskiego jest zarejestrowana pod adresem wirtualnego biura (ul. Mogilska 16/7, Kraków), podczas gdy faktyczna działalność — jak wynika z korespondencji — jest prowadzona z zagranicy (Waldemar Łopata komunikuje się z pokrzywdzonym jako przedstawiciel firmy, a korespondencja e-mail wskazuje na obsługę spraw z pozycji operatora zewnętrznego). W kontekście braku dostawy towaru, sprzecznych wyjaśnień i niewykonania obietnicy zwrotu pieniędzy, taki model prowadzenia działalności wzmacnia wnioski o jej pozorowanym charakterze, służącym wyłącznie pozyskaniu przedpłat od kontrahentów, bez zamiaru faktycznej realizacji umów. Samo korzystanie z wirtualnego biura nie jest czynem zabronionym, lecz w połączeniu z powyższymi okolicznościami stanowi element całokształtu zachowania sprawców.

4) ZŁAMANA OBIETNICA ZWROTU JAKO KONTYNUOWANE WPROWADZENIE W BŁĄD

Obietnica zwrotu kwoty 155 000,00 zł złożona w dniach 2 i 10 marca 2026 r., a następnie niezrealizowana po upływie wyznaczonego terminu (31 marca 2026 r.), nie stanowi przejawu czynnego żalu w rozumieniu art. 15 KK — albowiem przestępstwo oszustwa zostało dokonane w chwili pobrania przedpłaty na podstawie wprowadzenia w błąd, a późniejsza obietnica nie zmienia dokonanego czynu. Co więcej, złożenie obietnicy zwrotu, którą sprawcy z góry nie zamierzali wywiązać, stanowi kontynuowane wprowadzanie pokrzywdzonego w błąd co do swoich zamiarów i zdolności majątkowej — typowe dla procederu oszustwa polegającego na opóźnianiu podjęcia kroków prawnych przez pokrzywdzonego.

Deception pyramid framing: The narrative above follows the structure mandated by SN III KK 216/25^[4]^[5]: at the base, the commercial transaction (neutral); in the middle, the specific deceptive conduct — *przemilczenie niezdolności do realizacji* (concealment of inability to perform), supported by SN IV KK 403/24^[45]; at the apex, intent at the moment of contract formation, evidenced by contradictory post-factum explanations under the test from SN II KR 73/80^[38]. The contradictory explanations are framed as *poszlaka zamiaru* (circumstantial evidence of intent), not as the method of deception itself — this distinction is critical post-SN III KK 216/25^[4].

8.4 Kwalifikacja Prawna

8.4.1 Art. 286 § 1 KK with legal reasoning

III. KWALIFIKACJA PRAWNA

Zachowanie Mateusza Szklarskiego i Waldemara Łopaty MOŻE wyczerpywać znamiona przestępstwa oszustwa z art. 286 § 1 Kodeksu karnego:

"Kto, w celu osiągnięcia korzyści majątkowej, doprowadza inną osobę do niekorzystnego rozporządzenia własnym lub cudzym mieniem za pomocą wprowadzenia jej w błąd albo wyzyskania błędu lub niezdolności do należytego pojmowania przedsiębranego działania, podlega karze pozbawienia wolności od 6 miesięcy do lat 8."

— w związku z art. 18 § 1 Kodeksu karnego:

"Współsprawcą jest ten, kto wspólnie i w porozumieniu z inną osobą popełnia czyn zabroniony."

Elementy znamionowe wypełnione w niniejszej sprawie:

- a) cel: osiągnięcie korzyści majątkowej — uzyskanie kwoty 155 000,00 zł tytułem przedpłaty;
- b) czynność: doprowadzenie pokrzywdzonego do niekorzystnego rozporządzenia własnym mieniem — dokonanie przelewu bankowego w kwocie 155 000,00 zł;
- c) sposób: wprowadzenie w błąd przez przemilczenie istotnych okoliczności wpływających na decyzję o zawarciu umowy i dokonaniu przedpłaty, to jest zatajenie braku zdolności wykonawczej, braku towaru, braku środków finansowych oraz uzależnienia realizacji od nieokreślonych przyszłych wpływów;
- d) związek przyczynowy: pokrzywdzony nie zawarłby umowy ani nie dokonałby przedpłaty, gdyby znał prawdziwy stan rzeczy — brak zdolności wykonawczej sprawców i brak towaru;
- e) współsprawstwo: działanie wspólne i w porozumieniu — Mateusz Szklarski jako właściciel działalności gospodarczej GPUcomputer oraz Waldemar Łopata jako współoperator korespondencji i współwykonawca czynu, przy czym obaj posługiwali się tą samą infrastrukturą komunikacyjną (domena gpucomputer.pl) i koordynowali działania (obietnica zwrotu wysłana z obu skrzynek z jednogminutowym odstępem czasowym).

Kwota 155 000,00 zł nie przekracza progu 200 000 zł określonego w art. 115 § 5 KK dla "mienia znacznej wartości"^{[12][14]}; *zatem* do zastosowania pozostaje typ podstawowy z art. 286 § 1 KK (kara od 6 miesięcy do 8 lat pozbawienia wolności).

Why this qualification structure: The complaint explicitly names art. 286 § 1 KK w zw. z art. 18 § 1 KK while using the hedged formulation “*MOŻE wyczerpywać znamiona*” — this is the safer approach because the complainant does not bind the prosecutor (art. 303 KPK reserves qualification to the prosecution^[106]), and hedged language avoids any inference of art. 234 KK liability. The threshold analysis clarifies that the basic type applies (not the aggravated type under art. 294 § 1 KK), which is accurate for 155,000 PLN^[12].

8.5 Wnioski Dowodowe

8.5.1 Six specific evidentiary requests for the prosecutor

IV. WNIOSKI DOWODOWE

W związku z powyższym wnoszę o:

- 1) Przesłuchanie mnie, zawiadamiającego, w charakterze świadka (a po wszczęciu śledztwa — w charakterze pokrzywdzonego) przed wydaniem postanowienia kończącego postępowanie, zgodnie z art. 49 KPK i art. 307 § 3 KPK;
- 2) Zwrócenie się do banku prowadzącego rachunek działalności gospodarczej Mateusza Szklarskiego (GPUcomputer, NIP 8661681248) o ujawnienie pełnej historii operacji na rachunku firmowym za okres od 1 stycznia 2026 r. do 30 czerwca 2026 r. — w szczególności: wpływu kwoty 155 000,00 zł w dniu 12 stycznia 2026 r. oraz dalszego rozchodu tych środków;
- 3) Zwrócenie się do Centralnej Ewidencji i Informacji o Działalności Gospodarczej (CEIDG) o udostępnienie pełnej historii rejestracji działalności gospodarczej Mateusza Szklarskiego, w tym daty założenia, ewentualnych zmian w zakresie adresu, numeru NIP, zawieszenia lub zakończenia działalności;
- 4) Zwrócenie się do operatora domeny internetowej gpucomputer.pl (lub dostawcy usług hostingowych powiązanych z tą domeną) o udostępnienie metadanych korespondencji e-mail wysłanej z adresów waldek@gpucomputer.pl oraz gpucomputer@gpucomputer.pl w okresie od 1 stycznia 2026 r. do 31 maja 2026 r., w tym: adresów IP, z których logowano się do skrzynek, stref czasowych logowań oraz informacji o lokalizacji geograficznej;
- 5) Przeprowadzenie sprawdzenia w systemach wymiany informacji międzynarodowej (INTERPOL, Schengen Information System — SIS II) w zakresie ewentualnych wcześniejszych zapisów dotyczących Mateusza Szklarskiego i Waldemara Łopaty;
- 6) Zwrócenie się do Krajowej Administracji Skarbowej o udostępnienie dokumentacji celnej dotyczącej ewentualnych importów towarów dokonanych przez lub na rzecz GPUcomputer / Mateusza Szklarskiego

w okresie od 1 stycznia 2026 r. do 30 czerwca 2026 r.

Evidentiary strategy rationale: Each request is designed to fill a specific gap in the proof structure. Request (2) — bank history — tests whether the suspects ever had the means to procure the goods or whether the funds were diverted immediately. Request (3) — CEIDG history — may reveal whether the business was recently registered or modified, supporting the *firma-krzak* inference. Request (4) — email metadata — may confirm that Waldemar Łopata operated from abroad while Mateusz Szklarski was registered in Kraków, reinforcing the coordination theory. Request (5) — INTERPOL/Schengen checks — is standard for suspects with international mobility. Request (6) — customs records — directly tests the 24 February 2026 claim that “customs cleared the goods”; if no import declarations exist, that statement was demonstrably false.

8.6 Wniosek o Ściganie

8.6.1 Formal request with damages specification

V. WNIOSEK O ŚCIGANIE

Wnoszę o:

- 1) wszczęcie i prowadzenie postępowania karnego w sprawie powyższego zdarzenia oraz pociągnięcie Mateusza Szklarskiego i Waldemara Łopaty do odpowiedzialności karnej za popełnienie przestępstwa oszustwa z art. 286 § 1 KK w zw. z art. 18 § 1 KK;
- 2) zaliczenie mnie do grona pokrzywdzonych w rozumieniu art. 49 KPK;
- 3) przesłuchanie mnie w charakterze pokrzywdzonego przed wydaniem postanowienia kończącego postępowanie;
- 4) wydanie mi postanowienia o wszczęciu śledztwa lub dochodzenia albo odmowie wszczęcia, zgodnie z art. 304b KPK;
- 5) zasądzenie na moją rzecz od sprawców zwrotu poniesionej szkody w kwocie 155 000,00 zł (sto pięćdziesiąt pięć tysięcy złotych) wraz z odsetkami ustawowymi za opóźnienie od dnia 31 marca 2026 r. do dnia zapłaty, w ramach ewentualnego rozpoznania roszczeń cywilnych w postępowaniu karnym (art. 415 § 1 KPK).

Procedural note: Although art. 286 KK is prosecuted *ex officio* and a formal request to prosecute is not strictly required^{[13][26]}, including it strengthens the complainant’s position, signals seriousness, and secures the right to be notified of the screening decision (art. 304b KPK). The specification of damages (155,000 PLN + statutory interest from 31 March 2026) enables the prosecutor to include a civil claim (*roszczenie cywilne*) in any future indictment under art. 415 § 1 KPK. The pending EPU claim (Nc-e 552126/26) does not preclude parallel criminal proceedings — *ne bis in idem* applies only between criminal proceedings^{[11][141]}.

8.7 Załączniki

8.7.1 Numbered list of attachments

VI. ZAŁĄCZNIKI

1. Potwierdzenie przelewu SWIFT nr 1 z dnia 12 stycznia 2026 r.
— kwota 150 000,00 zł (oryginał w języku angielskim + nieoficjalne tłumaczenie na język polski).
2. Potwierdzenie przelewu SWIFT nr 2 z dnia 12 stycznia 2026 r.
— kwota 5 000,00 zł (oryginał w języku angielskim + nieoficjalne tłumaczenie na język polski).
3. Faktura proforma GPUcomputer nr 2/01-2026 z dnia stycznia 2026 r.
(oryginał w języku angielskim + nieoficjalne tłumaczenie na język polski).
4. Kompletna korespondencja e-mail z Mateuszem Szklarskim i Waldemarem Łopatą z okresu styczeń — maj 2026 r.
(wydruki w języku angielskim w kolejności chronologicznej, załączniki A1-A[n]; pliki elektroniczne w formacie .eml na nośniku USB — załącznik nr 7).
5. Wydruk z Krajowego Rejestru Zadłużonych (KRZ) z dnia 28 maja 2026 r. dotyczący Mateusza Szklarskiego / GPUcomputer.
6. Wydruk z CEIDG potwierdzający rejestrację jednoosobowej działalności gospodarczej Mateusza Szklarskiego (NIP 8661681248), adres siedziby: ul. Mogilska 16/7, Kraków.
7. Nośnik USB zawierający wersje elektroniczne wszystkich powyższych dokumentów (PDF + oryginalne pliki .eml z zachowaniem nagłówek pocztowych).

Oświadczenie o tłumaczeniu:

Ja, niżej podpisany Magnus Brantheim, oświadczam, że załączone nieoficjalne tłumaczenia na język polski dokumentów w języku angielskim sporządziłem samodzielnie i uważam je za wierne odwzorowanie treści oryginałów. Tłumaczenia te mają charakter pomocniczy i nie są tłumaczeniami przysięgłymi. W razie potrzeby zobowiązuję się do dostarczenia tłumaczenia przysięgłego dowolnego z załączonych dokumentów na każdym etapie postępowania, na koszt zawiadamiającego.

Łączna liczba stron zawiadomienia:

Łączna liczba załączników: 7 (siedem) + nośnik USB

Translation strategy: Sworn translations at the complaint stage cost approximately 2,700–3,100 PLN for 50 pages of English documents — a significant expense for uncertain benefit^{[40][58]}. The prosecution's screening decision is based on whether *uzasadnione podejrzenie* exists, not on the formal status of translations^[63]. The recommended approach: attach original English-language exhibits with unofficial Polish translations signed as accurate, include a formal undertaking to provide sworn translations at any stage if requested, and submit electronic originals on USB^{[21][109]}.

.....
miejscowość i data

.....
(własnoręczny podpis zawiadamiającego)

Uwaga: Podpis musi być odręczny, własnoręczny (atrament/długopis).
Podpis cyfrowy, skan, faksymile lub pieczętka nie spełniają wymogów
art. 119 § 1 pkt 4 KPK.

Signature requirement: This is the single most common reason for procedural invalidity. SN I KZP 29/06 held that a scanned/printed signature does not satisfy art. 119 KPK^[211]. SA Kraków II AKz 752/24 confirmed that email filing with a scanned signature is procedurally ineffective^[210]. Print the document, sign the last page by hand in ink, and send the original by registered post.

Filing Instructions (English — remove before submission)

Where to send: Prokuratura Rejonowa Kraków-Śródmieście Wschód, ul. Mosiężnicza 2, 30-965 Kraków

How to send: List polecony za potwierdzeniem odbioru (registered mail with return receipt) from any Polish post office or from Sweden. The original signed document must reach the prosecutor. Keep the postal receipt (*dowód nadania*) — it is your only proof of the filing date, which starts the 30-day screening clock under art. 307 § 1 KPK^[8] and the 6-week notification window under art. 306 § 3 KPK^[15].

Filing fee: 0 PLN (filing a criminal complaint is free of charge)^[26].

What happens next: Within 30 days (instructive deadline), the prosecutor must issue a postanowienie either opening an investigation (*wszczęcie śledztwa*) or refusing to open one (*odmowa wszczęcia*)^[148]. If you are not notified within 6 weeks, you may file a *zażalenie na bezczynność* (complaint about inactivity) to the superior prosecutor^[24]. If refused, you have 7 days to file *zażalenie na odmowę wszczęcia* (appeal against refusal) — this is a preclusive deadline that permanently ends the case if missed^[15].

This template incorporates legal reasoning from the research dimensions cited above. Citations are preserved in their original numbering from dimension reports. The template should be reviewed by Polish legal counsel before submission, particularly if the 7-day appeal deadline becomes relevant.